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Provision of February 22, 2024
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No. 104 of February 22, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data, and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data, and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor Regulation
No. 1/2000 on the organization and functioning of the
office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Prof. Ginevra Cerrina Feroni;

PREAMBLE

1. Introduction

With a complaint submitted on XX pursuant to Article
77 of the Regulation, against the Municipality of
Civita Castellana (hereinafter the "Municipality") and
S.A.T.E. S.p.a. (Services Environment Territory
Energy, hereinafter the "Company"), Messrs. XX, XX, and
XX reported that they had received a

communication, pursuant to Article 34 of the Regulation, wherein the Municipality informed the interested parties of having become aware, through the Company, – in its capacity as the waste collection service manager – "of the possibility of an illegitimate dissemination, through social media, of particular personal data belonging to some citizens [...] in the context of the waste collection and disposal service, protected in compliance with anti Covid-19 regulations."

In particular, as already reported by the Municipality in the notification of personal data breach sent to the Authority, pursuant to Article 33 of the Regulation, on XX (note prot. n. XX of XX), the aforementioned dissemination – which occurred in the month of XX – consisted of making available "On WhatsApp and then on Facebook [...] of] a photo of the internal document with which the Entity informed the company SATE S.p.a., manager of the waste collection service, of the residences where individuals reside for whom a particular form of collection related to the Covid-19 epidemiological emergency must be activated," involving a total of nine interested parties.

2. The investigative activity

During the checks carried out to ascertain the claims made in the complaint and in the notification of personal data breach, the Office, with an initial note dated XX, invited the Municipality to provide any useful information regarding the above-mentioned incident, pursuant to Article 157 of the Code. The Municipality, with a note dated XX, provided a response to the aforementioned request for information stating that:

"On XX, the ASL of Viterbo [...] informed the Prefectural Commissioner of the Municipality of Civita Castellana [...] of the positive Covid cases of some citizens of Civita Castellana, for the consequent obligations for the adoption of containment measures for the Sars Covid 19 virus, sending a specific list of positive or quarantined citizens";

"Upon receiving the communication, the Prefectural Commissioner of the Municipality of Civita Castellana, [...] ordered the activation of the anti Covid-19 procedures provided by the Entity and already in use since the beginning of the pandemic.

These procedures included two internal service communications: the first addressed to the Commander of the Local Police [...] for the activation of home surveillance for individuals affected by the virus, the second addressed to the company S.A.T.E. S.p.a., manager of the integrated waste collection and disposal service, for the activation of special collection and differentiated disposal services for waste from residences with individuals affected by the

Sars Covid-19 virus [...]";

"With reference to the case under investigation, on the morning of XX, at the direction of the Prefectural Commissioner of the Municipality of Civita Castellana [...] two distinct communications were sent, as per practice: the first addressed to the Commander of the Local Police [...] containing the complete list transmitted by the ASL of Viterbo, for the activation of home surveillance and for the respective control responsibilities, the second sent via certified email to the company S.A.T.E. S.p.a. containing a minimized list of the information contained (surname and name only with initials, address...

integral, start and end date of isolation [...]. Both of these service communications were sent with the wording "ENSURE MAXIMUM CONFIDENTIALITY AND PROTECTION OF PRIVACY"; "On XX, the Prefect Commissioner of the Municipality of Civita Castellana [...] was contacted by the ASL of Viterbo, informing him that a photo of the internal document with which the Entity had notified the company S.A.T.E. S.p.a. for the collection of special waste had appeared on WhatsApp and Facebook"; "On XX, [...] the CEO of S.A.T.E. S.p.a., in addition to the previous communication, reported that on XX he filed a complaint regarding the events that occurred and that he had taken steps to acquire elements aimed at ascertaining both the methods by which the event occurred, as well as any responsible parties for any further and required legal obligations"; "On XX, the Prefect Commissioner of the Municipality of Civita Castellana [...] sent a communication of personal data breach to the company S.A.T.E. S.p.a. [...] in which, with reference to what happened, he requested to keep the Municipality of Civita Castellana promptly informed about the outcomes of the ongoing investigation [...]". Subsequently, with a note dated XX (prot. n. XX), the Office invited the Company to provide any useful information regarding the aforementioned incident, pursuant to Article 157 of the Code. In response to this request, the Company, with a note dated XX, represented that: "Regarding the conditions of lawfulness [...] the processing of the personal data in question is necessary for the performance of a public service activity, such as waste collection, which during the pandemic period has been subject to particular attention and operational measures. SATE, in particular, had to adopt differentiated procedures for the collection of waste from individuals positive for Covid, operating in compliance with privacy as a data processor; therefore, the processing of personal data is lawful in accordance with the principles established by EU Regulation 679/2016"; "The legal relationship between the municipality and the company pursuant to Article 28 is constituted by a service contract [...]; "The company, as already mentioned, has initiated an internal procedure aimed at identifying both any responsible parties and the methods by which the alleged unlawful acts were committed. In particular, the company has proceeded with the hearing of the RSU as well as a member of the control committee for compliance and management of all protocols on Covid-19, as was required at the time. On XX, a complaint was filed regarding the events that occurred, highlighting the fact that the illicitly disseminated photo was not taken within the company but, as indicated in the complaint, was presumably taken outside since it appears to be an altered photo taken of a cell phone screen, as the photo contains a frame that does not correspond at all to any bulletin board or other glass surface of the company, nor does it reflect any ceiling or door of the company, but reflects completely different elements. Furthermore, even the municipal police who went to the company that same day did not report or contest anything in this regard"; "The company has carried out activities aimed at training and raising awareness among employees, in order to optimize the conditions for data processing through meetings and courses, also jointly with the control committee, where particular attention was paid to the protocols provided for the processing of personal data." The Municipality, in response to a further request for information dated XX made by the Authority, with a note dated XX, also clarified regarding the channels through which the health-related data was disseminated, that "In any case, from information acquired about the incident, the dissemination of the data in question occurred only within a WhatsApp chat and, therefore, among a very limited number of people" and that "The uniqueness of the event and the extreme limitation of the dissemination of the data (which occurred only within a WhatsApp chat and,

therefore, among a very limited number of people) are the distinguishing characteristics of what happened, the cause of which must be exclusively attributed to the incorrect protection and management of the information sent by the Entity by SATE S.p.a. and its operators [...]". Regarding the regulation of the relationship between the Municipality and the Company, the Municipality clarified that "The relationships between the contracting authority and the company are governed by a contract signed in 2001 and supplemented in 2011 [...]". With reference to the conduct of the Company, the Office, based on the elements acquired and the facts emerged following the investigative activity, notified on XX (prot. n. XX) pursuant to Article 166, paragraph 5, of the Code, the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation in relation to the following violations, for having acted: in a manner not compliant with the principles of lawfulness, correctness, and transparency and, therefore, in violation of Articles 5, paragraph 1, letter a) and 9 of the Regulation, and Article 2-septies, paragraph 8 of the Code (as in force at the time of the facts, in the text prior to the amendments made by Decree-Law No. 139 of October 8, 2021, converted, with modifications, by Law No. 205 of December 3, 2021), as the dissemination of health-related data occurred in the absence of an appropriate legal basis; in a manner not compliant with the principles of integrity and confidentiality in violation of Articles 5, paragraph 1, letter f) and 32 of the Regulation, as the aforementioned dissemination was also caused by an absence...

****of appropriate technical and organizational measures (e.g. circulars, guidelines, etc.) suitable to ensure adequate security of personal data, including attention from internal personnel to the risks arising from unauthorized or unlawful processing of personal data.****

With the aforementioned act, the Company was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981). However, the Company did not submit any defensive memoranda nor did it request to be heard.

****3. Outcome of the investigative activity****

****3.1. The legislation on personal data protection.****

The processing of personal data must occur in compliance with the applicable legislation on personal data protection and, in particular, with the provisions of the Regulation and the Code. In particular, "personal data" is defined as "any information relating to an identified or identifiable natural person ('data subject')." Furthermore, "an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person" (Article 4, paragraph 1, no. 1, of the Regulation).

Regarding special categories of data, these are considered to be "personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, as well as [...] genetic data, biometric data intended to uniquely identify a natural person, data concerning health or the sexual life or sexual orientation of the person" (Article 9, paragraph 1, of the Regulation).

With particular reference to the case brought to the Authority's attention, it is noted that the operation of "dissemination" of personal data – that is, "making personal data known to unspecified subjects, in any form, including by making them available or consulting them" (Article 2-ter, paragraph 4, letter b) of the Code) – processed for the execution of a task of public interest or related to the exercise of public powers, is permitted only when provided for by a legal norm or, in cases provided for by law, by regulation (Article 2-ter, paragraph 3, of the Code, in the text prior to the amendments made by the aforementioned Legislative Decree No. 139 of October 8, 2021, converted, with amendments, by Law No. 205 of December 3, 2021) and always in compliance with the principles regarding personal data protection, including the principles of "lawfulness, fairness, and transparency," according to which data must be "processed lawfully, fairly, and transparently in relation to the data subject" and "integrity and confidentiality," according to which data must be "processed in a manner that ensures adequate security of personal data, including protection against unauthorized or unlawful processing and against

accidental loss, destruction, or damage" (Article 5, paragraph 1, letters a) and f) of the Regulation).

In particular, regarding the adoption of technical and organizational security measures, Article 32 of the Regulation establishes that "taking into account the state of the art and the costs of implementation, as well as the nature, scope, context, and purposes of the processing, and the risk of varying likelihood and severity for the rights and freedoms of natural persons, the data controller and the data processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk."

****3.2. The dissemination of special categories of data by the Company.****

From the assessment carried out based on the elements acquired and the facts emerged during the investigative activity, it was found that the processing of the data in question, carried out by the company on behalf of the Municipality, was initiated without the role being regulated pursuant to Article 28 of the Regulation (nor pursuant to Article 29 of the Code, in the text prior to the amendments made by Legislative Decree No. 101 of August 10, 2018), as the service contract signed in 2001 and subsequently supplemented in 2011, which initially conferred the functions of managing the "public urban hygiene service," in existence at the time of the personal data breach and only subsequently superseded by the new contract of XX, did not meet the characteristics of the legal act intended to regulate the relationship with the data processor, as it did not contain either the elements required by Article 29 of the previous Code or the elements required by Article 28 of the Regulation.

In this regard, it is emphasized that "The presence (or absence) of a written agreement, however, is not decisive for the existence of a data controller-data processor relationship. [...] a data controller-data processor relationship could exist even in the absence of a written processing agreement. [...] Moreover, under certain circumstances, the absence of a clear definition of the relationship between the controller and the processor may lead to the issue of the lack of a legal basis on which any processing should be based, for example regarding the communication of data between the controller and the alleged processor" (see, in this sense, the Guidelines 07/2020 on the concepts of data controller).

processing and of the data controller pursuant to the GDPR, version 2.0, adopted on July 7, 2021, by the European Data Protection Board, specifically note 42 to point 103). However – also considering the state of emergency related to the COVID-19 epidemic, declared by the Council of Ministers on January 31, 2020, and the legislative interventions aimed at identifying urgent measures for the containment and management of the epidemiological emergency – the subject of the dispute within the investigation conducted by the Authority was not the legitimacy of the processing concerning the communication, by the Municipality, of the list containing the minimized data of citizens affected by the Sars Covid-19 virus, to the company for the activation of special differentiated waste collection and disposal services, but rather the dissemination, in the sense defined above, of such a list, which constitutes an excessive processing compared to the aforementioned communication. The dissemination of health-related data, as emerged during the investigation, was attributable to the Company, which did not provide indications regarding the legal basis that would legitimize such processing.

In this regard, it is noted that the processing of personal data carried out by public entities or managers of public services is, as a rule, lawful only if necessary "to comply with a legal obligation to which the data controller is subject" or "for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller" (art. 6, par. 1, lett. c) and e), of the Regulation). It is also provided that "Member States may maintain [...] more specific provisions to adapt the application of the rules of this regulation with regard to processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for the processing and other measures to ensure lawful and fair processing [...]" (art. 6, par. 2, of the Regulation). As for processing concerning special categories of personal data referred to in Article 9, par. 1, of the Regulation, necessary for reasons of substantial public interest pursuant to par. 2, lett. g), of the same article, "are permitted where they are provided for by Union law or, in domestic law, by statutory provisions or, in cases provided for by law, by regulations that specify the types of data that may be processed, the operations that may be carried out, and the relevant substantial public interest, as well

as the appropriate and specific measures to safeguard the fundamental rights and interests of the data subject” (art. 2-sexies, comma 1, of the Code, in the text in force at the time of the facts, prior to the amendments made by the aforementioned d.l. October 8, 2021, n. 139, converted, with modifications, by law December 3, 2021, n. 205).

In any case, health-related data, that is, those “related to the physical or mental health of a natural person, including the provision of health care services, revealing information about their health status” (art. 4, par. 1, n. 15 of the Regulation), due to the greater guarantees recognized by the Regulation and the Code, given the particular sensitivity of this category of data, it is expressly provided that “they may not be disseminated” (art. 2-septies, comma 8, of the Code and art. 9, par. 4, of the Regulation).

Furthermore, regarding the emergency situation, it is highlighted that, within the management of the state of emergency related to the COVID-19 epidemic, declared by the Council of Ministers on January 31, 2020, numerous provisions have been adopted that involve the processing of personal data. These provisions provide, on the one hand, that public administrations may carry out the processing of personal data that is necessary for the performance of the functions assigned to them in the context of the emergency caused by the spread of Covid-19, and on the other hand, that the necessary measures are adopted to ensure compliance with the current regulations on the protection of personal data and, in particular, the principles applicable to processing, as set out in art. 5 of the Regulation (cf. art. 5 of the ordinance of the Head of the Department of Civil Protection of February 3, 2020, n. 630; art. 17 bis of the decree-law of March 17, 2020, n. 18, converted with modifications, by law April 24, 2020, n. 27).

As already highlighted, the current regulations prohibit the dissemination of health-related data, and this prohibition has not been derogated by the emergency legislation on Covid-19 (art. 9 of the Regulation; arts. 2-septies, comma 8, of the Code and 166, comma 2 of the Code; art. 14 of the decree-law of March 9, 2020, n. 14 and art. 17bis of the aforementioned d.l. of March 17, 2020, n. 18, converted with modifications, by law April 24, 2020, n. 27). Such processing, besides being prohibited, in the context of managing the emergency adds to the risks for the data subjects and their families, in addition to the penalty for exposure to the disease, also that arising from an unacceptable dissemination of very sensitive aspects related to their private lives.

With particular reference to the context in question, it is also emphasized the risk that, even in the case of the publication of documents in which the complete identifying data of the data subjects are not reported (for example, the communication containing only the pointed initials, etc.), especially in territorial realities such as that of the aforementioned Municipality, the data subjects may still be identifiable. As emerged during the investigation, the dissemination of health-related data was also caused by a lack of adequate technical and organizational measures (e.g., circulars, guidelines, etc.) suitable to ensure adequate security of the processing.

personal data also in terms of attention, on the part of the internal staff of the Company, to the risks arising from unauthorized or unlawful processing. In this regard, it is appropriate to highlight that, although the data controller is obliged to process the data in accordance with the instructions given by the data subject, certain obligations provided for by the regulations on personal data protection are also directly imposed on the data processor.

In this regard, Article 32 of the Regulation establishes that “[...] the data controller and the data processor implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk.” Therefore, it is also the responsibility of the data processor, due to their experience and expertise in the specific sector in which they operate, to adopt appropriate technical and organizational measures.

In light of the above considerations, the processing of personal data concerning the dissemination of health-related data by the company appears to have been carried out in violation of the regulations on personal data protection, in a manner inconsistent with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 9 of the Regulation, as well as Article 2-septies, paragraph 8 of the Code (in the text in force at the time

of the facts, prior to the amendments made by Decree Law No. 139 of October 8, 2021, converted, with amendments, by Law No. 205 of December 3, 2021). It is also established that the principle of “integrity and confidentiality” (Article 5, paragraph 1, letter f) and Article 32 of the Regulation has been violated.

4. Conclusions.

In light of the assessments mentioned above, it is noted that the statements made by the Company, as the data processor, during the investigation – the truthfulness of which may be subject to accountability under Article 168 of the Code – although deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Guarantor No. 1/2019 apply.

Therefore, the preliminary assessments of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the Company is noted, for having processed personal data in violation of Articles 5, paragraph 1, letters a) and f), 9, and 32 of the Regulation, and Article 2-septies, paragraph 8 of the Code (in the text prior to the amendments made by Decree Law No. 139 of October 8, 2021, converted, with amendments, by Law No. 205 of December 3, 2021). Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the most serious violations, relating to Articles 5 and 9 of the Regulation and Article 2-septies, paragraph 8 of the Code are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as recalled also by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified, considering that the turnover of the Company is equal to €3,151,959.00 (three million one hundred fifty-one thousand/00) for the year 2022, up to €20,000,000 (twenty million/00).

Furthermore, considering that the conduct has exhausted its effects, the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Guarantor, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] corrective measures [provided for in this paragraph], or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019).

In this regard, considering Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

With specific regard to the nature and severity of the violation (Article 83, paragraph 2, letter a), of the Regulation), both the specific nature of the processing – concerning the limited dissemination of personal data through a private WhatsApp chat, and the limited duration of the same must be considered. It is also believed that the fact that the publication concerned a small number of individuals (nine cases) (Article 83, paragraph 2, letter a) of the Regulation) should be taken into account.

However, the sensitivity of the data processed must be considered unfavorably to the Company (Article...

83, par. 2, lett. g), of the Regulation), as they may reveal the health conditions of the data subjects.

In light of these circumstances, it is believed that, in this specific case, the severity level of the violation committed by the data controller can be considered medium (cf. European Data Protection Board, "Guidelines 04/2022 on the calculation of administrative fines under the GDPR" of May 23, 2023, point 60).

That being said, it must be taken into account, in favor of the Company for the purposes of quantifying the sanction, that there are no previous relevant violations committed by the data controller and that the aforementioned Company has taken action (by initiating an internal procedure and filing a complaint regarding the events that occurred) in order to understand the dynamics and the individuals responsible for the dissemination, also to adopt measures aimed at mitigating the damage suffered by the data subjects (art. 83, par. 2, lett. c) and e) of the Regulation). Additionally, it is noted, also in favor of the Company, that the violation occurred during the initial phase of the state of emergency related to the COVID-19 epidemic, declared by the Council of Ministers on January 31, 2020, in the presence of a peculiar organizational and management situation in which the Company found itself for the management of the waste collection service from positive or quarantined individuals, as well as from a peculiar climate of uncertainty and tension on the part of the population regarding the precautionary measures to be adopted to prevent the spread of the virus (art. 83, par. 2, lett. k) of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary sanction at the sum of €6,000.00 (six thousand/00) for the violation of arts. 5, par. 1, lett. a) and f), 9 and 32 of the Regulation, and of art. 2-septies, par. 8 of the Code (in the text prior to the amendments made by the decree law of October 8, 2021, no. 139, converted, with amendments, by law of December 3, 2021, no. 205), as an administrative monetary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

In light of the above and considering the type of violations established that concerned the general principles of processing, and in particular the principles of lawfulness, integrity, and confidentiality, it is also believed that the accessory sanction of publication on the website of the Authority of this provision should be applied, as provided for by art. 166, paragraph 7 of the Code and art. 16 of the Regulation of the Authority no. 1/2019.

Finally, it is noted that the conditions set forth in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

declares, pursuant to art. 57, par. 1, lett. f), of the Regulation, the unlawfulness of the processing carried out by S.A.T.E. S.p.a. (Servizi Ambiente Territorio Energia) for the violation of arts. 5, par. 1, lett. a) and f), 9 and 32 of the Regulation, and of art. 2-septies, par. 8 of the Code (in the text prior to the amendments made by the decree law of October 8, 2021, no. 139, converted, with amendments, by law of December 3, 2021, no. 205), in the terms stated in the motivation;

ORDERS

pursuant to arts. 58, par. 2, lett. i) and 83 of the Regulation, as well as art. 166 of the Code, S.A.T.E. S.p.a. (Servizi Ambiente Territorio Energia), with registered office at Piazza Matteotti n. 3, 01030 - Civita Castellana (VT), Tax Code and VAT number 01683120560, to pay the total sum of €6,000.00 (six thousand/00) as an administrative monetary sanction for the violations indicated in the motivation. It is represented that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ORDERS

S.A.T.E. S.p.a. (Servizi Ambiente Territorio Energia) to pay the total sum of €6,000.00 (six thousand/00) in case of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, according to the methods indicated in the attachment, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with art. 27 of

law no. 689/1981;

DISPOSES

the publication of this provision on the website of the Authority pursuant to art. 166, paragraph 7, of the Code (see art. 16 of the Regulation of the Authority no. 1/2019);

the annotation of this provision in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u), of the Regulation, of the violations and the measures adopted in accordance with art. 58, par. 2, of the Regulation (see art. 17 of the Regulation of the Authority no. 1/2019).

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree no. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, February 22, 2024

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE SECRETARY GENERAL

Mattei